

		means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." The SAC alleges that "Knowing of MOHLER's repeated urinary tract infections, dehydration, sepsis, and declining condition, and despite clear notice that existing staffing levels were inadequate to meet her basic needs, DEFENDANTS' managing agents... failed to take corrective action." (SAC ¶69.) These allegations are sufficient to allege conduct demonstrating conscious disregard of the rights or safety of others. Tentative Ruling: The request to strike punitive damages is DENIED <i>Attorneys' Fees:</i> Defendants move to strike the request for attorneys' fees as to the first cause of action. Based on the court's overruling of Defendants' demurrer to the first cause of action, the request to strike attorneys' fees requested by Plaintiffs in the first cause of action is DENIED. Moving Defendants to give notice.
6	Ornelas vs. Madison Reed, Inc. 2025-01494153	Motion to Compel Arbitration Defendant Madison Reed, Inc.'s moves to Compel Individual Arbitration.

		Defendant seeks to compel Plaintiff Sarah Ornelas to submit all causes of action pleaded in her Complaint to binding arbitration on an individual basis. Defendant prevents evidence that Plaintiff electronically signed an arbitration agreement on 10/4/22 as part of the onboarding process when she was hired by Defendant. (Papania Decl., ¶¶ 11-14, Exs. C-E.) The agreement states that it is “governed by the Federal Arbitration Act, 9 U.S.C. § 1 et seq. and evidences a transaction involving commerce.” (Papania Decl., ¶ 11; Ex. D, § 1, p. 9.) The agreement includes a delegation clause, which states that “the Arbitrator, and not any court, shall have exclusive authority to resolve any dispute relating to the validity, applicability, enforceability, or waiver of this Agreement, including, but not limited to any claim that all or any part this Agreement is void or voidable. However, as stated in the ‘Class and Collective Action Waivers’ section below, the preceding sentence does not apply to the Class Action Waiver and/or Collective Action Waiver.” (Papania Decl. ¶ 11; Ex. D, § 1, p. 9.) The arbitration agreement also includes a 30-day opt out provision. (Papania Decl. ¶ 11, Ex. D, § 10, p. 12.) Plaintiff concedes she electronically signed the arbitration agreement and did not opt out within the 30-day period. (See Opp., p. 2:18-3:8.) Nor does Plaintiff dispute that the FAA applies. Plaintiff’s only argument against enforcement is that the delegation clause and the arbitration agreement are each unconscionable. Parties to an arbitration agreement may agree to delegate any challenges to the arbitration agreement to the arbitrator, including the threshold arbitrability question. (Henry Schein, Inc. v. Archer & White Sales, Inc. (2019) 586 U.S. 63, 65.) “There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 242 citing Rent-A-Center, West, Inc. v. Jackson (2010) 561 U.S. 63, 68-69, fn. 1 (Rent-A-Center).) “[A]ny claim of unconscionability must be specific to the delegation clause.” (Tiri, supra, 226 Cal.App.4th at p. 244 [emphasis in original].)
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	Plaintiff does not dispute that the language of the delegation clause is clear and unmistakable. Therefore, the first prerequisite is satisfied. Plaintiff argues the delegation clause is procedurally unconscionable because it is embedded within the same adhesive, densely worded arbitration agreement. Plaintiff is correct. (See <i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 245-246 [holding delegation clause contained in arbitration agreement presented on a take it or leave it basis was procedurally unconscionable]; see also <i>Ajamian v. CantorCO2e, L.P.</i> (2012) 203 Cal.App.4th 771, 794, fn. 11 [same].) Plaintiff argues the delegation clause is substantively unconscionable because it contains a carve-out for the class action waiver. According to Plaintiff, this carve-out creates a one-sided procedural framework designed to maximize Defendant's ability to enforce individualized arbitration and minimize aggregate exposure. The court disagrees. The carve-out for class action waivers benefits employees by ensuring that any unlawful waiver of class or representative rights receives judicial scrutiny. The Ninth Circuit reviewed a similar delegation clause with a class action carve-out and explained the requirement to enforce the delegation clause: "The delegation provisions clearly and unmistakably delegated the question of arbitrability to the arbitrator for all claims except challenges to the class, collective, and representative action waivers in the 2013 Agreement. In accordance with Supreme Court precedent, we are required to enforce these agreements 'according to their terms' and, in the absence of some other generally applicable contract defense, such as fraud, duress, or unconscionability, let an arbitrator determine arbitrability as to all but the claims specifically exempted by the 2013 Agreement." (<i>Mohamed v. Uber Technologies, Inc.</i> (9th Cir. 2016) 848 F.3d 1201,1209, citing <i>Rent-A-Center, supra</i>, 561 U.S. at p. 67.) The court finds the delegation clause is not substantively unconscionable. (See <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114 ["both procedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or
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		clause under the doctrine of unconscionability.” (emphasis in original)].) Since both prerequisites have been satisfied, the delegation clause is enforceable and the arbitrator, not the court, must determine whether the Arbitration Agreement is unconscionable. Tentative Ruling: The motion is GRANTED. This action is stayed pending the outcome of arbitration. Moving party to give notice.
7	Quijano vs. Mission Hospital Regional Medical Center 2025-01517956	1. Demurrer to Amended Complaint 2. Case Management Conference The Defendant Mission Hospital Regional Medical Center dba Providence Mission Hospital Mission Viejo demurs to First Amended Complaint (“FAC”). <u>Legal Standard:</u> At the pleading stage, the Court must liberally construe the complaint, drawing all reasonable inferences in favor of Plaintiffs’ asserted claims. (<i>Liapes v. Facebook, Inc.</i> (2023) 95 Cal.App.5th 910, 919.) “A demurrer must dispose of an entire cause of action to be sustained. Thus, a court must overrule a demurrer to a cause of action if it is based on at least one viable theory of liability.” (<i>Thompson v. Spitzer</i> (2023) 90 Cal.App.5th 436, 451–452 [cleaned up].) “We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. If the complaint states a cause of action under any theory, regardless